

**IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(SPECIAL ORIGINAL JURISDICTION)**

Writ Petition No.10673 of 2022

IN THE MATTER OF:

An application under Article 102 of the
Constitution of the People's Republic of
Bangladesh.

-And-

IN THE MATTER OF :

Mohammad Ali Mridha

.....Petitioner

-Versus-

Bangladesh, represented by the Secretary, Ministry
of Land, Bangladesh Secretariat, Dhaka and others

.....Respondents.

Mr. Monjil Murshed with

Mr. S.M. Bdorul Islam, Advocates

.....for the petitioner

Mr. Md. Saiefuldin Khalid, DAG with

Ms. Fatema Rshid ,AAG

..for the Respondents

Heard and Judgment on: 21.08.2024

Present:

Ms. Justice Ashish Ranjan Das

&

Ms. Justice Fahmida Quader

Ashish Ranjan Das, J;

Rule Nisi was issued on 01.09.2022 at the instance of the petitioner

Mohammad Ali Mridha in the following terms:

*“Let a Rule Nisi be issued calling upon the respondents to show
cause as to why inaction of the respondents in preparing the New*

Khatian in the name of the petitioner as per judgment and decree dated 28,01.2016(decree signed on 04.02.2016) in respect of decretal .3500 acres of land by correcting BRS khatian No.1 corresponding BRS Dag No.2330, 2331, 2332, 2333 and 2334 should not be declared illegal without lawful authority and is of no legal effect and /or pass such other or further order or orders as to this Court may seem fit and proper.”

Subsequently, a supplementary Rule Nisi was issued in the following terms:

Let a supplementary Rule Nisi be issued calling upon the respondents to show cause as to why inaction of the respondent No.3 in disposing the application dated 03.08.2020 for preparation of Mutation in the name of the petitioner as per judgment and decree dated 28,01.2016 (decree signed on 04.02.2016) in Land Survey Tribunal Case No.1736 of 2013 in respect of decretal .3500 acres of land by correcting BRS khatian No.1 corresponding BRS Dag No.2330, 2331, 2332, 2333 and 2334 should not be declared illegal without lawful authority and is of no legal effect and /or pass such other or further order or orders as to this Court may seem fit and proper.

We have heard the learned lawyer for the petitioner and the reply given by the learned Deputy Attorney General.

Short fact is that involving a land dispute with the government, the petitioner had brought a Land Survey Tribunal Case No. 1376 of 2013 in the Land Survey Tribunal of Mymensingh. The learned Tribunal hearing both the sides found the case proved and allowed the application. The learned

Land Survey Tribunal further directed the Assistant Commissioner of Land to mutate the name of the petitioner in the light of the judgment by opening a new khatian.

The respondent government preferred an appeal but the Assistant Commissioner of Land remained silent. Finding no other alternative the petitioner pressed an application to the concerned Assistant Commissioner of Land Muktagacha, Mymensingh for recording the name's by opening a khatian. He pressed an application on 03.08.2020 but the Assistant Commissioner of Land, Muktagacha, Mymensingh, the person concerned has been sleeping over the matter without taking any decision. While as has been said the government did not challenge the order of the Tribunal in appeal.

Now, we think it just as the learned Deputy Attorney General also agreed that a concrete direction should be given upon the Assistant Commissioner of Land, Muktagacha, Mymensingh, so that decides the application Annexure-E on merit in accordance with law within 30(thirty) days from the receipt of the copy of this order.

With the direction, the Rule is disposed of.

No order as to costs.

Send down the L.C.R.

Fahmida Quader, J:

I agree.

Bashar, B.O.